

Vinod @ Vinayak Bapurao Wankhade vs Sau. Sonali Vinayak Wankhade And 2 ... on 25 April, 2016

Author: S.B. Shukre

Bench: S.B. Shukre

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY :
NAGPUR BENCH : NAGPUR.

Writ Petition No.7148 of 2014.

Vinod @ Vinayak Bapurao Wankhade,
aged about 30 years, Occ.-Business,
R/o.-C/o.-Sudhakar Harne Amarnagar, VMV,
Amravati, Tq. and District Amravati.

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Versus

- 1] Sau.Sonali Vinayak Wankhade,
aged about 27 years, Occ.-Nil,
- 2] Ome Vinayak Wankhade,

aged about 6 years, Occ.-Nil,

3] Harsh Vinayak Wankhade,
aged about 2.5 years, Occ.-Nil,
Respondent nos. 2 and 3 through their

natural guardian mother respondent no.1.
Nos. 1 to 3 residents of C/o.-Kisanrao Gawande,
Ravinagar, Amravati,
Tq. and District Amravati. ...

Ms Ratna Singh, Adv for petitioner.
Shri R.D. Wakode, Adv for resp.nos.1 to 3.

Coram : S.B. Shukre, J.
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Dated : 25
April, 2016.

ORAL JUDGMENT

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1] Rule. Rule made returnable forthwith. Heard

consent.

2] By this petition, an order passed under Section 24 of the Hi

Marriage Act, 1955, on 10-11-2014 granting interim maintenance of Rs. 5000/- per month to all the

respondents, passed by the 2nd Joint Civil Judge Senior Division, Amravati in H.M.P. No.28 of 2014 has been challenged.

3] It is submitted by the learned Counsel for the petitioner that the impugned order is illegal and perverse as it does not adequately consider the fact that it is the respondent no.1 herself who had deserted the petitioner without any just and sufficient cause and therefore the respondent no.1 and the children are not entitled to receive even interim maintenance. She further submits that the respondent no.1 is running Kirana shop and is able to maintain herself and respondent nos.2 and 3 out of income earned from the Kirana/Grocery shop. She further submits that the petitioner's income is not more than Rs. 150/- to Rs.200/- per day and therefore, the petitioner is not able to bear the burden of paying interim maintenance of Rs. 5000/- per month to the respondents. She also submits that the petitioner has to look after his parents and in addition, he is bearing medical expenses on account of his suffering from 3 judg wp 7148.14.odt abdominal ailment.

4] The learned Counsel for the respondents submits that all these submissions have been appropriately dealt with in the impugned order and therefore there is no illegality nor any perversity in the impugned order.

5] Upon going through the impugned order, I find that there is substance in the argument of the learned Counsel for the respondents and no merit in this petition.

6] About the argument of the learned Counsel for the petitioner is that the respondent no.1 has deserted the petitioner without there being any sufficient and reasonable cause, I must say, the same would have to be considered only on merits of the case. At this stage, what is necessary to be looked into is as to whether or not the petitioner though possessed of sufficient means to maintain his wife and children has neglected to do so. The petitioner, as seen from the impugned order as well as the record of this petition, is a person who is capable of earning income every day. The petitioner himself has produced on record a certificate from his employer, Kamal Electronics, Amravati. The certificate shows that the petitioner is working in the said shop on temporary basis and earning such sums 4 judg wp 7148.14.odt as Rs. 150/- to Rs. 200/- per day subject to availability of work. This would be sufficient for me to accept the submission of the learned Counsel for the respondents at this stage that the petitioner is not suffering from such an ailment as to prevent him from doing work at any other place and earning income every day and that if the petitioner is incurring some medical expenditure, the petitioner ought to have produced the copy on record before the trial Court but the petitioner has not done so. The petitioner has also not submitted any evidence to substantiate his claim that he is required to incur some sort of expenses for his parents. The petitioner has also not produced on record any evidence to show that the respondent no.1 who is earning some income from carrying on the grocery business. Thus, there is a prima-facie case showing ability of petitioner to earn and his neglect to maintain on one hand and inability of respondents to maintain themselves, on the other.

7] In the circumstances, I do not find that any case is made out by the petitioner for making any interference in the impugned order.

There is no substance in this petition and it deserves to be dismissed.

The petition stands dismissed.

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8] Rule is discharged. No order as to costs.

JUDGE

Deshmukh